



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLTA-23-1 – Amending UDC Section 5.8.2.h, Manufactured Homes on Single Platted Lots
Date: August 28, 2023

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/28/2023
- Public Services Committee 9/6/2023
- Second reading 9/11/2023
- Public Services Committee 9/19/2023
- Third and final reading 9/25/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their August 21, 2023, meeting and **voted 4-0** to recommend the Governing Body approve Option B as listed in the staff report with the addition of "Manufactured homes shall be built to the current HUD code as referenced in the federal manufactured housing construction and safety standards."

The Planning Commission Staff report is attached and has not been changed. The ordinance provided is the recommendation of the Planning Commission which has been amended from what is listed in the staff report. Staff supports the Planning Commission's recommendation and amendment.

Attachments:

1. Ordinance
2. Redlined Ordinance for Reference
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 5.8.2.h OF THE UNIFIED DEVELOPMENT CODE (UDC), AMENDING MANUFACTURED HOMES ON SINGLE PLATTED PROPERTIES OR TRACTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on August 21, 2023, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 5.8.2.h, Manufactured Homes on Single Platted Properties or Tracts, of Article 5, Zoning Regulations, Supplemental Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

1. The installation of all manufactured homes, appurtenances, foundations, and retaining walls shall comply with all City adopted building codes and City Code. No manufactured home will be permitted under this section if the date of manufacture is greater than eight (8) years.
2. Manufactured homes shall have the delivery system removed, including the towing hitch, and shall be installed on a permanent foundation constructed of masonry, concrete or other approved material.
3. Manufactured homes shall be built to the current HUD code as referenced in the federal manufactured housing construction and safety standards.

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

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1. ~~The home shall be sited in such a fashion that it meets all the requirements of the district in which it is located.~~ The installation of all manufactured homes, appurtenances, foundations, and retaining walls shall comply with all City adopted building codes and City Code. No manufactured home will be permitted under this section if the date of manufacture is greater than eight (8) years.
2. ~~The home~~Manufactured homes shall have the delivery system removed, including the towing hitch, and shall be installed on a permanent foundation constructed of masonry, concrete or other approved material. ~~The home shall be installed on a permanent foundation constructed of masonry, concrete or other approved material and shall comply with the building code. The foundation system shall be designed and constructed to sustain, within the stress limitations specified in the building code, all loads specified in the building code. The installation instructions as provided by the manufacturer of the manufactured home shall be used to determine permissible points of support for vertical loads and points of attachment for anchorage systems used to resist horizontal and uplift forces. The foundation system design shall be stamped and signed by a Wyoming licensed professional engineer.~~
- ~~2.~~3. ~~The house~~Manufactured homes shall be built to the current HUD code ~~for this zone~~ as referenced in the federal manufactured housing construction and safety standards. ~~Skirting and permanent perimeter enclosures shall be installed. Skirting shall be of material suitable for exterior exposure and contact with the ground. Permanent perimeter enclosures shall be constructed of materials as required by the building code for regular foundation construction. Skirting shall be installed in accordance with the skirting manufacturer's installation instructions. Skirting shall be adequately secured to assure stability, to minimize vibration and susceptibility to wind damage, and to compensate for possible frost heave.~~

- ~~4. Where retaining walls are used as a permanent perimeter enclosure, they shall resist the lateral displacements of soil or other materials and shall conform to the building codes as specified for foundation walls. Retaining walls and foundation walls shall be constructed of approved treated wood, concrete, masonry or other approved materials or combination of materials as for foundations as specified in the building code. Siding materials shall extend below the top of the exterior of the retaining or foundation wall or the joint between siding and enclosure wall shall be flashed in accordance with the building code.~~
- ~~5. The structure shall have a pitched roof, with a slope of not less than a nominal three inch vertical rise for each twelve (12) inches of horizontal run. Roof material shall consist of nonreflective material customarily used for conventional dwellings including but not limited to fiberglass shingles, composition shingles or tile material. Roof materials shall not include flat or corrugated sheet metal, except for manufactured metal roof panels.~~
- ~~6. The structure shall have a roof overhang, of not less than eight inches measured from the vertical side of the home.~~
- ~~7. The structure shall have siding material consisting of wood or wood products, stucco, brick, rock, horizontal lap steel or aluminum or horizontal lap vinyl.~~
- ~~8. The structure shall be a minimum of 24' along the widest part of the structure's shortest axis.~~
- ~~9. The structure shall be constructed in accordance with the most recent version of the HUD code. However, no home will be permitted under this section if it was built prior to the year 2000.~~

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PLANNING COMMISSION

AUGUST 21, 2023

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 5.8.2.h.

CASE NUMBER: PLTA-23-1

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Sections 5.8.2.h as outlined in Option B of this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendment came about because a citizen had submitted for a variance to UDC Section 5.8.2.h.8, which required that any manufactured home installed on a single platted lot must be 24-feet wide. Through Staffs review we determined that the variance could not be supported because of the strictness of a variance. The proposed lot on which the applicant wanted to install a smaller manufactured home could easily hold a larger manufactured home that met the requirements. The proposed home by the applicant was a newer model and would be placed on a permanent foundation and meet all other requirements of this section, except for the width.

Staff reviewed this section and discussed many of the requirements with the Chief Building Official. A stick-built home, or a home built to the International Residential Building Code (IRC) could be built to the size of the proposed manufactured home and not have to meet any of the requirements in section 5.8.2.h. Additionally, homes built to the IRC do not have design requirements per the UDC and can come in any shape or size. This means that someone could build a small home that looked like a manufactured home anywhere in the community.

Staff is proposing two amendment options. Option A would allow manufactured homes of any size to be installed on a single platted lot as long as they met all of the other requirements of section 5.8.2.h. Staff believes the most notable requirements are that a manufactured home would need to be installed on a permanent foundation, the delivery system would need to be completely removed and the manufactured home can not be more than 8 years old. These requirements create permanence. Option A also retains some of the design requirements under today's code.

Option B proposes only having four requirements. Those requirements are, the manufactured home will need to meet all City building code and zoning code requirements, be no more than eight years old, the delivery system needs to be removed, and the home must be placed on a permanent foundation. Much of this section of code is covered by building code regulations and can be removed from the zoning code. Homes built under the IRC can be smaller, the same shape, and have the same look as a manufactured home.

The proposed modifications to this section would allow for more obtainable housing and move in the direction the Affordable Housing Task Force has been recommending. There is almost no difference if someone built a small home to IRC standards verses a small HUD built manufactured home. HUD requirements are getting closer to IRC requirements and the differences between them is become less and less.

Staff prefers Option B as it would be easier to regulate, has less overlap with existing building code, and is similar to how any other residence is regulated. Option A is a good alternative that keeps in a lot of the existing language, and it would still be beneficial to the community.

PROPOSED AMENDMENTS:

Option A:

Amend UDC Section 5.8.2.h, Manufactured Homes on Single Platted Properties or Tracts

1. ~~The home shall be sited in such a fashion that it meets all the requirements of the district in which it is located.~~ The installation of all manufactured homes, appurtenances, foundations, and retaining walls shall comply with all City adopted building codes and City standards applicable at the time of permit submittal.
2. ~~The home~~ Manufactured homes shall have the delivery system removed, including the towing hitch.
3. ~~The home~~ Manufactured homes shall be installed on a permanent foundation constructed of masonry, concrete or other approved material, and shall comply with the building code. ~~The foundation system shall be designed and constructed to sustain, within the stress limitations specified in the building code, all loads specified in the building code.~~ The installation instructions as provided by the manufacturer of the manufactured home shall be used to determine permissible points of support for vertical loads and points of attachment for anchorage systems used to resist horizontal and uplift forces. The foundation system design shall be stamped and signed by a Wyoming licensed professional engineer.
4. ~~3-~~ Manufactured homes shall be built to Manufactured Home Construction and Safety Standards (HUD Code) ~~the current HUD code~~ for this zone as referenced in the federal manufactured housing construction and safety standards. ~~Skirting and permanent perimeter enclosures shall be installed. Skirting shall be of material suitable for exterior exposure and contact with the ground. Permanent perimeter enclosures shall be constructed of materials as required by the building code for regular foundation construction. Skirting shall be installed in accordance with~~

the skirting manufacturer's installation instructions. Skirting shall be adequately secured to assure stability, to minimize vibration and susceptibility to wind damage, and to compensate for possible frost heave.

5. 4. Where retaining walls are used as a permanent perimeter enclosure, they shall resist the lateral displacements of soil or other materials and shall conform to the jurisdictions current adopted building codes as specified for foundation walls. Retaining walls and foundation walls shall be constructed of approved treated wood, concrete, masonry or other approved materials or combination of materials as for foundations, ~~as specified in the building code.~~ Siding materials shall extend below the top of the exterior of the retaining or foundation wall or the joint between siding and enclosure wall shall be flashed. ~~in accordance with the building code.~~
6. 5. The structure Manufactured homes shall have a pitched roof, ~~with a slope of not less than a nominal three inch vertical rise for each twelve (12) inches of horizontal run.~~ Roof material shall consist of nonreflective material customarily used for conventional dwellings including but not limited to fiberglass shingles, composition shingles or tile material. Roof materials shall not include flat or corrugated sheet metal, except for manufactured metal roof panels.
7. 6. The structure Manufactured homes shall have a roof overhang. ~~of not less than eight inches measured from the vertical side of the home.~~
8. 7. The structure Manufactured homes shall have siding material consisting of wood or wood products, stucco, brick, rock, horizontal lap steel or aluminum or horizontal lap vinyl.
9. 8. The structure shall be a minimum of 24' along the widest part of the structure's shortest axis. Building permits shall be required and all foundation plans submitted shall be designed and stamped by a State of Wyoming licensed design professional.
10. 9. The structure shall be constructed in accordance with the most recent version of the HUD code. ~~However, n~~ No HUD home will be permitted under this section if the date of manufacture is greater than eight (8) years. it was built prior to the year 2000.

Option B:

1. ~~The home shall be sited in such a fashion that it meets all the requirements of the district in which it is located. The installation of all manufactured homes, appurtenances, foundations, and retaining walls shall comply with all City adopted building codes and City standards applicable at the time of permit submittal. No manufactured home will be permitted under this section if the date of manufacture is greater than eight (8) years.~~
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REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

The proposed amendment is in compliance with multiple goals and policies such as: Policy 1.1.B Flexibility to respond to market demands, 1.4.A Infill Opportunities, 2.5.A Community Housing needs met, and 2.5.B Workforce Housing throughout the community, to name a few.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

(i) Regulate and restrict the:

- (A) Height, number of stories and size of buildings and other structures;
- (B) Percentage of lot that may be occupied;

- (C) Size of yards, courts and other open spaces;
 - (D) Density of population; and
 - (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
- (ii) Establish setback building lines.

Assessment: This amendment proposes modifying the Unified Development Code to change the requirements of manufactured homes when installed on a single platted lot.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would allow for smaller manufactured homes to be installed on single platted lots throughout the community and provided additional avenues for affordable or obtainable housing in the community.

CONCLUSION:

Staff concludes that both options of this text amendment meet the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Sections 5.8.2.h as outlined in Option B of this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.